Stereo. H C J D A 38.

Judgment Sheet

LAHORE HIGH COURT LAHORE

JUDICIAL DEPARTMENT

R.F.A. No.10709 of 2020

State Life Insurance Corporation of Pakistan and another

Versus

Mst. Shamshad Akhtar

J U D G M E N T

Date of Hearing	**07.10.2025**
For the appellants	Mr. Ibrar Ahmad, Advocate.
For the respondent(s)	M/s Liaquat Ali Butt and Mian Hamza Amjad, Advocates.

Raheel Kamran J:- Since the titled R.F.A. No.10709 of 2020 and the connected appeals bearing R.F.A. No.10713 of 2020, R.F.A. No.2402 of 2020 and R.F.A. No.20747 of 2020, filed under Section 96 of the Code of Civil Procedure, 1908 ("CPC"), arise out of the same subject matter and disclose a substantially similar factual matrix and common legal questions particularly touching the maintainability/limitation aspects and the claim of statutory interest under Section 47B of the Insurance Act, 1938 (hereinafter, *"the Act of 1938"*) and as learned counsel for the parties have addressed arguments on overlapping points, it is considered appropriate, for the sake of convenience, consistency and to avoid multiplicity of judgments, to decide all the aforesaid appeals through this single consolidated judgment; however, wherever necessary, the facts peculiar to each appeal shall be noticed separately.

2. Factual matrix of each appeal as gathered from the judgments of the trial Court is as under:-

R.F.A. No.10709 of 2020.

The respondent Mst. Shamshad Akhtar is widow of late Riaz Hussain who, according to the plaint, was serving the appellant-Corporation as a Sales

Officer and was covered under Group Insurance Code No.634285 for a sum of Rs.352,000/-. Riaz Hussain expired on 01.11.1999. The respondent lodged insurance claim, which was declined. Then the respondent approached the Wafaqi Mohtasib, whose order dated 20.01.2001 went in her favour; a part payment of Rs.52,500/- was made on 12.03.2001 but without interest. The appellants' representation before the President of Pakistan was dismissed on 12.10.2001, whereafter the remaining amount of Rs.299,250/- was paid on 19.01.2002, however, without payment of interest. Thereafter, the respondent pursued the question of interest before different *fora*: she filed a fresh complaint before the Wafaqi Mohtasib for interest which was allowed on 18.04.2003; the appellants filed a review petition before the Wafaqi Mohtasib on 29.05.2003 which was accepted on 02.06.2004; respondent's representation before the President was dismissed on 30.11.2005; writ proceedings were initiated; upon establishment of the Punjab Insurance Tribunal, Lahore by way of notification dated 20.06.2006 the respondent moved an application for recovery of interest on 27.07.2006; the said proceedings travelled up and down, including dismissal and remand, culminating in subsequent appellate proceedings. Ultimately, the respondent instituted the present civil suit on 19.04.2014 for recovery of interest along with an application under Section 14 read with Section 19 of the Limitation Act, 1908 seeking exclusion of the time spent in *bona fide* prosecution before other *fora*. The trial Court framed issues *inter alia* regarding maintainability, limitation, entitlement to exclusion of time, and entitlement to interest under Section 47B of the Act of 1938 and after recording evidence of the parties decreed the suit, directing appellant No.1 to pay interest on Rs.352,000/- under Section 47B of the Act of 1938 at the rate of five percent higher than the prevailing bank rate from 01.11.1999 till realization on monthly basis with costs, hence, this appeal.

R.F.A. No.10713 of 2020.

The respondent Mst. Shahina Bukhari is daughter and sole legal heir of late Muhammad Aslam Shah, who, according to the plaint, was serving the appellant-Corporation as a Sales Manager and was covered under Group Insurance Code No.734060 for a sum of Rs.6,00,000/-. Muhammad Aslam

Shah died on 05.01.1998 and his widow Mst. Kaneez Bibi lodged insurance claim, which was declined by the appellants. Mst. Kaneez Bibi then lodged complaint before the Wafaqi Mohtasib, which was accepted on 02.04.2000. The appellants' representation before the President of Pakistan was dismissed on 09.01.2001, whereafter the amount of claim to the tune of Rs.5,88,000/- was paid on 09.01.2001, however, without interest. Thereafter, Mst. Kaneez Bibi pursued for recovery of interest before different *fora*: she filed a fresh complaint before the Wafaqi Mohtasib for interest which was allowed on 18.04.2003; the appellants filed a review petition before the Wafaqi Mohtasib on 29.05.2003 which was accepted on 02.06.2004. Mst. Kaneez Bibi preferred representation before the President of Pakistan on 26.07.2004 but the same became infructuous; writ proceedings were initiated; upon establishment of the Punjab Insurance Tribunal, Lahore by way of notification dated 20.06.2006 an application for recovery of interest was moved by Mst. Kaneez Bibi on 28.07.2006 before the Insurance Tribunal; the said proceedings travelled up and down, including dismissal and remand, culminating in subsequent appellate proceedings. Mst. Kaneez Bibi passed away in the meanwhile and ultimately, the respondent Mst. Shahina Bukhari being daughter and sole legal heir of Muhammad Aslam Shah and Mst. Kaneez Bibi instituted the present civil suit on 05.04.2014 for recovery of interest. The trial Court framed issues *inter alia* regarding maintainability, limitation, entitlement to exclusion of time, and entitlement to interest under Section 47B of the Act of 1938 and after recording evidence of the parties decreed the suit, directing appellant No.1 to pay interest on Rs.6,00,000/- under Section 47B of the Act of 1938 at the rate of five percent higher than the prevailing bank rate from 05.01.1998 till realization on monthly basis with costs, hence, this appeal.

R.F.A. No.2402 of 2020.

The respondent Mst. Abida Perveen is widow of late Syed Elamdar Hussain Taqi, who, according to the plaint, was serving the appellant-Corporation as a Sales Representative and was covered under Group Insurance Code No.5769849 for a sum of Rs.1,65,000/-. Syed Elamdar Hussain Taqi expired on 02.02.1999. The respondent lodged insurance claim, which was declined.

Then the respondent lodged complaint before the Wafaqi Mohtasib, which was accepted on 02.04.2000. The appellants' representation before the President of Pakistan was dismissed on 23.11.2000, whereafter the amount of Rs.1,65,000/- was paid on 09.01.2001 without interest. Thereafter, the respondent pursued for recovery of interest before different *fora*: she filed a fresh complaint before the Wafaqi Mohtasib for interest which was allowed on 20.03.2001; the appellants filed a review petition before the Wafaqi Mohtasib on 29.03.2003 which was accepted on 02.06.2004; respondent moved representation before the President of Pakistan but the same became infructuous; respondent's appeal before the Chairman State Life Insurance Corporation was rejected on 11.04.2005; upon establishment of the Punjab Insurance Tribunal, Lahore by way of notification dated 20.06.2006 the respondent moved an application for recovery of interest on 29.07.2007, which was dismissed on 21.02.2008; the respondent assailed the said order in appeal, which was allowed and the case was remanded to the Insurance Tribunal on 06.07.2010 and in post-remand proceedings the application was accepted by the Insurance Tribunal on 19.01.2012; the appellants assailed the order of Insurance Tribunal in appeal before this Court; the proceedings travelled up and down, including dismissal and remand, culminating in subsequent appellate proceedings. Ultimately, the respondent instituted the present civil suit for recovery of interest along with an application under Section 14 read with Section 19 of the Limitation Act, 1908 seeking exclusion of the time spent in *bona fide* prosecution before other *fora*. The trial Court framed issues *inter alia* regarding maintainability, limitation, entitlement to exclusion of time, and entitlement to interest under Section 47B of the Act of 1938 and after recording evidence of the parties decreed the suit, directing appellant No.1 to pay interest on Rs.1,65,000/- under Section 47B of the Act of 1938 at the rate of five percent higher than the prevailing bank rate from 02.02.1999 till realization on monthly basis with costs, hence, this appeal.

R.F.A. No.20747 of 2020.

The respondent Mst. Rukhsana Kausar is widow of late Muhammad Azam, who, according to the plaint, was serving the appellant-Corporation as a Sales Representative and was covered under Group Insurance Code No.5765538 for a sum of Rs.2,25,000/- and had also purchased Life Insurance Policy No.507651935-9 of Rs.60,000/- on 24.04.1994. Muhammad Azam expired on 09.03.1997. The respondent lodged insurance claim, which was declined. The respondent approached the Wafaqi Mohtasib, whose order dated 06.12.2000 went in her favour; a part payment of Rs.2,25,000/- was made on 09.03.2001 but without interest. The appellants' representation before the President of Pakistan was dismissed on 11.10.2001, whereafter the remaining amount of Rs.73,320/-/- was paid on 07.12.2001, however, without payment of interest. Thereafter, the respondent pursued the question of interest before different *fora*: she filed a fresh complaint before the Wafaqi Mohtasib for interest which was allowed on 18.04.2003; the appellants filed a review petition before the Wafaqi Mohtasib on 29.05.2003 which was accepted on 02.06.2004; respondent's representation before the President was dismissed on 30.11.2005; writ petition filed by the respondent challenging the President's order was accepted by this Court on 18.04.2006 and appellants were directed to pay liquidated damages within three months but the said order was not complied, whereupon the respondent filed contempt petition which was disposed of on 18.09.2006; said order was assailed by the appellants before the Supreme Court but leave was refused vide order dated 29.11.2006; thereafter the appellants paid an amount of Rs.1,84,735/- to the respondent on 29.11.2006 on Life Insurance Policy but did not pay interest on Group Insurance claim; the respondent sought payment of remaining amount but the appellants demanded refund of Rs.22,414/- claiming the same to have been paid in excess; the recovery memo was challenged by the respondent before the Insurance Tribunal but her prayer was rejected on 08.10.2007, which was assailed by the respondent in appeal and the same was allowed on 15.02.2013; the appellants challenged the said order before the Supreme Court but remained unsuccessful; thereafter the respondent filed suit for recovery of interest of Rs.25,15,211/- from the date of death of the insured till its realization, along with an application under Section 14 read with Section 19 of the Limitation Act, 1908 seeking exclusion of the time spent in *bona fide* prosecution before other *fora*. The trial Court framed issues *inter alia* regarding maintainability, limitation, entitlement to exclusion of time, and entitlement to interest under Section 47B of the Act of 1938 and after recording evidence of the parties decreed the suit, directing appellant No.1 to pay interest on principal amount of group insurance i.e. Rs.2,25,000/- under Section 47B of the Act of 1938 at the rate of five percent higher than the prevailing bank rate from 09.03.1997 till realization on monthly basis with costs, hence, this appeal.

3. Learned counsel for the appellants, relying upon the judgment of this Court in *"State Life Insurance Corporation of Pakistan through Zonal Head/Attorney and another v. Mst. Undlus Begum"* **(2024 CLD 445 [Lahore])**, (hereinafter, *"Mst. Undlus Begum"*) contended that the controversy relating to interest under Section 47B of the Act of 1938 stands concluded, as Section 47B has ceased to remain in the field after it was declared repugnant to the Injunctions of Islam by the Federal Shariat Court in *"Dr. Mahmood-ur-Rahman Faisal and others v. Secretary, Ministry of Law, Justice and Parliamentary Affairs, Government of Pakistan, Islamabad and others"* (**PLD 1992 FSC 1)**, (hereinafter, *"Dr. Mahmood-ur-Rahman Faisal"*) which declaration was upheld by the Shariat Appellate Bench of the Supreme Court in *"Dr. M. Aslam Khaki v. Syed Muhammad Hashim and 2 others"* **(PLD 2000 SC 225)** (hereinafter, *"Dr. M. Aslam Khaki"*); hence, no decree for interest at monthly rates could legally be sustained.

4. Conversely, learned counsel for the respondents supported the impugned judgment and decree. He submitted that the reliance placed by the appellants on *Dr. Mahmood-ur-Rahman* and *Dr. M. Aslam Khakhi* and the inferences drawn therefrom in *Mst. Undlus Begum* are misconceived, as the Shariat Appellate Bench of the Supreme Court in review petition titled "*United Bank Ltd. v. Messrs Farooq Brothers and others"* **(PLD 2002 SC 800)** (hereinafter, *"review judgment"*) set aside the aforesaid judgments and remanded the matter to the Federal Shariat Court for decision afresh; therefore, it cannot be contended that Section 47B stood finally and conclusively knocked out of the field so as to deny the respondent the statutory consequence of late settlement. He maintained that admittedly the insured in all the cases in hand died when Section 47B of the Act of 1938 was in field as well as prior to the announcement of *Dr. M. Aslam Khaki*, yet the insured amounts were not paid within the statutory time due to which the respondents had to file complaints before the Wafaqi Mohtasib and even after decision of complaints in favour of the respondents, only the principal amounts of insurance claim were released without payment of interest, hence attracting Section 47B in the absence of proof of circumstances beyond the insurer's control. He emphasized that the question of proper forum/jurisdiction in insurance matters, particularly in the context of claims traceable to the pre-Insurance Ordinance, 2000 (hereinafter *"the Ordinance, 2000"*) regime, stands elaborately settled by the Full Bench of this Court in the case of ***"**Mst. Robina Bibi v. State Life Insurance and others"* **(2013 CLD 477)**, and, in terms thereof, the civil suits in the cases in hand were clearly maintainable and competently instituted.

5. In rebuttal, learned counsel for the appellants contended that the respondent's reliance on the *review judgment* is misconceived inasmuch as the said judgment does not deal with, nor adjudicate upon, the scheme of the Act of 1938; rather, by the time of that decision, the Act of 1938 had already stood repealed/substituted by the Ordinance, 2000, hence the respondent cannot derive any advantage therefrom to sustain a claim founded upon Section 47B of the repealed statute. He further argued that, in any event, the post-remand proceedings culminated in the Federal Shariat Court judgment reported as ***"**Messrs Farooq Brothers and others v. United Bank Limited and others"* **(PLD 2023 FSC 47)** (hereinafter, *"Farooq Brothers"*), wherein the Federal Shariat Court reiterated the position that provisions pertaining to interest, wherever provided in law, are repugnant to the Injunctions of Islam; therefore, the decretal direction for interest at monthly rates is not legally sustainable.

6. Learned counsel for the respondents, while responding to the foregoing rebuttal, submitted that the reliance placed on *Farooq Brothers* does not advance the appellants' case, because in the post-remand judgment the Federal Shariat Court did not include Section 47B of the Act of 1938 in the category of provisions declared repugnant to the Injunctions of Islam, notwithstanding that the said provision had figured in the earlier set of laws examined by the Federal Shariat Court. He further contended that, in any event, even in *Farooq Brothers*, the consequence declared by the Federal

Shariat Court is prospective in nature, whereas, in the present case, the cause of action had accrued to the respondents prior to the year 2000, at a time when Section 47B was on the statute book and fully enforceable; therefore, the trial Court rightly applied Section 47B to the admitted delay in settlement and correctly held the respondents in each case entitled to the statutory interest.

7. I have heard learned counsel for the parties at length and have perused the record with their assistance.

8. It is not in dispute that insurance claims of the respondents in each case in hand were initially repudiated, whereafter they approached the Federal Ombudsman and after decision of the Ombudsman in their favour only the principal amounts were released without payment of interest, compelling them to file and continue litigation before different *fora*. The record further reflects that the respondents, after securing the principal amount, instituted fresh complaints for interest before the Wafaqi Mohtasib, which were allowed and the review filed by the appellants were accepted; the representations before the President were dismissed. The respondents had been approaching this Court in Writ jurisdiction. They also approached the Punjab Insurance Tribunal, Lahore and thereafter the matter travelled up and down, including dismissal/remand and subsequent appellate proceedings, ultimately leading to institution of the civil suits. The controversy regarding the proper forum for claims traceable to insurance policies issued prior to the promulgation of the Ordinance, 2000 remained clouded for a considerable period and litigants were, on account of *bona fide* ambiguity, led to pursue remedies before *fora* later found not to possess jurisdiction. This Court in *Mst. Undlus Begum* has recognized this very difficulty, observing that the *bona fides* of litigants in approaching the wrong forum get traction due to genuine ambiguity, and that even a Full Bench had to be constituted to resolve the jurisdictional mist; the matter ultimately stood settled when the Full Bench view in the case of *Mst. Robina Bibi* was upheld by the Supreme Court in "*Mst. Naseem Begum and others v. State Life Insurance Corporation of Pakistan and others"* **(2014 SCMR 655)**. It was also held in *Mst. Undlus Begum* that the limitation objection fades away where the foundational jurisdictional question reveals that the forum approached had no jurisdiction. Accordingly, in the facts of the present case where the respondents' pursuit of remedies before Ombudsman/President/Writ and thereafter the Tribunal was a *continuum* of *bona fide* prosecution born out of jurisdictional uncertainty, the appellants' objection as to maintainability/jurisdiction is repelled.

9. The respondent instituted the suits along with applications under Section 14 read with Section 19 of the Limitation Act, 1908, seeking exclusion of the period spent in *bona fide* prosecution before *fora* which ultimately did not provide the efficacious remedy. The chronological narration (complaints for interest allowed; review there-against allowed; representation dismissed; Writ proceedings; Tribunal proceedings and subsequent rounds culminating into the present suits) demonstrates continuous pursuit and negates any inference of negligence or deliberate inaction. Here again, the reasoning adopted in *Mst. Undlus Begum* is directly instructive. This Court held therein that, given the genuine ambiguity on the correct forum and the ensuing *bona fide* prosecution before wrong *fora*, the time spent is liable to be excluded/condoned; additionally, equitable considerations in insurance matters may also lend support to condonation at the appellate stage. It was further held in *Mst. Undlus Begum* that once a plaint is returned under Order VII Rule 10, CPC, the litigant has the option either to present the same before the proper court or to institute a fresh suit. Applying the same principles, the respondents' prosecution before the earlier *fora*, undertaken in good faith and with due diligence, deserve protection under Section 14 and 19 of the Limitation Act.

10. I may now advert to the merits of the case qua respondents' claim of interest under Section 47B of the Act of 1938. Before proceeding further, it would be advantageous to reproduce Section 47B of the Act of 1938:-

> *"47B. (1) Where payment on a policy issued by an insurer becomes due and the person entitled thereto has complied with all the requirements, including the filing of complete papers, for claiming the payment, the insurer shall, if he fails to make the payment within a period of ninety days from the date on which the payment becomes due or the claimant complies with the requirements, whichever is later, pay interest as specified in sub-section (2) on the amount so payable unless he proves that such failure was due to circumstances beyond his control.*

> *(2) The interest under sub-section (1) shall be payable for the period during which the failure continues and shall be calculated at monthly rates at the rate of five per cent higher than the prevailing bank rate."*

A plain reading of the section shows that it creates a statutory, compensatory consequence for delayed settlement of a payable insurance claim: once payment becomes due and the claimant has complied with the requisite requirements (including complete papers), the insurer must pay within ninety days, failing which the insurer becomes liable to pay interest as specified, unless it establishes that the failure was due to circumstances beyond its control. The provision is thus designed to discourage avoidable delay and to protect claimants, often the weaker party, from loss caused by late settlement.

11. Facts of the present cases may now be examined. In these cases, the insured died: in R.F.A. No.10709 of 2020 on 01.11.1999, in R.F.A. No.10713 of 2020 on 05.01.1998, in R.F.A. No.2402 of 2020 on 02.02.1999 and in R.F.A. No.20747 of 2020 on 09.03.1997. The insurance claim in each case was initially repudiated by the appellants, compelling the respective respondent to approach the Wafaqi Mohtasib, whose orders went in favour of the claimants. In the circumstances, repudiation followed by the ombudsman's direction indicates that, by that stage at the latest, the claims were sufficiently supported for processing and payment; and in any event, the appellants have not shown material justifying withholding payment beyond the statutory window of 90 days contemplated by Section 47B. Even thereafter, only principal amounts were paid without interest. These admitted facts viewed against the ninety-day mandate, attract the compensatory consequence contemplated by Section 47B of the Act of 1938.

12. Plea of the appellants that Section 47B had ceased to have effect on repeal/substitution of the Act of 1938 by the Ordinance, 2000 is untenable being legally misconceived. By virtue of Section 6 of the General Clauses Act, 1897, unless a different intention appears, repeal does not affect the previous operation of the repealed enactment, nor does it affect any right accrued or liability incurred thereunder, and it does not bar the institution/continuation of legal proceedings in respect thereof. Consequently, the respondents' right to claim the statutory consequence of delayed payment under Section 47B, and the appellants' corresponding liability which had accrued during the subsistence of the Act of 1938, remain protected notwithstanding subsequent repeal/substitution.

13. Reliance of learned counsel for the appellants upon the case of *Mst. Undlus Begum* to contend that interest cannot be awarded under Section 47B as such provision has been declared repugnant to the Injunctions of Islam in *Dr. Mahmood-ur-Rahman Faisal* as upheld by *Dr. M. Aslam Khaki* is equally misplaced.

A perusal of judgment in the case of *Dr. Mahmood-ur-Rahman Faisal* shows that in paragraph No.322 to 324, the Federal Shariat Court examined Sections 3BB(1)(b), 27(3), 29(8)(b), 29(8)(c)(iii), 47B and 81(2)(d) of the Act of 1938 and held the same as repugnant to the injunctions of Islam. The said judgment was initially upheld by the Shariat Appellate Bench of the Supreme Court in the case of *Dr. M. Aslam Khaki*. In the instant case that in the said judgment, certain laws were directed to cease to have effect from 31.03.2000, whereas other laws or provisions, to the extent declared repugnant, were directed to cease to have effect from 30.06.2001. The provisions of the Act of 1938 fell within the latter category, i.e., those to cease to have effect from 30.06.2001.

The subsequent development of direct relevance is the *review judgment* of 2002, wherein the Shariat Appellate Bench set aside both the earlier judgments i.e. *Dr. Mahmood-ur-Rahman Faisal* and *Dr. M. Aslam Khaki* and remanded the matter to the Federal Shariat Court for fresh determination. For reference, paragraph 19 of the review judgment is reproduced hereunder:-

> *"19. Resultantly, Civil Shariat Review Petition No. 1 of 2000 filed by the United Bank Ltd. is allowed, the judgment, dated 23rd December, 1999 passed by the Shariat Appellate Bench of this Court in Shariat Appeals Nos. 11 to 19 of 1992 and the judgment, dated 14th November, 1991 of the Federal Shariat Court passed in Shariat Petitions Nos.42-I + 45-I of 1991 etc. are set aside and the cases are remitted to the Federal Shariat Court for determination afresh in the light of the contentions of the parties noted above and the observations made which are germane to the controversy. Besides the points raised before this Court, the parties would be at liberty to raise any other issue relevant to these cases and the Federal Shariat Court may also, on its own motion, take into*

consideration any other aspect which may arise or may be found relevant for determination of the issues involved herein."

14. In post-remand proceedings, the Federal Shariat Court delivered its judgment in the case of *Farooq Brothers*. In that judgment, although it reiterated that interest, wherever provided in law, is repugnant to the injunctions of Islam, it also contemplated in paragraph No.163 of the judgment that the provisions of law declared repugnant would not cease to operate immediately and time for taking effect of the decision was fixed up to 31.12.2027. This course was adopted in line with the mandate of clause (2)(b) of Article 203D[1] of the Constitution.

15. The insured persons were covered under the regime of the Act of 1938 and died, and the claims were initially repudiated, at a time when Section 47B was on the statute book and enforceable, i.e., prior to the promulgation of the Insurance Ordinance, 2000 and prior to the cut-off date (30.06.2001) mentioned in *Dr. M. Aslam Khaki*. Moreover, the judgments in *Dr. Mahmood-ur-Rahman Faisal* and *Dr. M. Aslam Khaki* were subsequently set aside in review when the matter was remanded for fresh determination and even in the post-remand judgment (*Farooq Brothers*), the Federal Shariat Court contemplated prospective operation and granted time for legislative/administrative measures (notably up to 31.12.2027). Thus the respondents in each of these cases were entitled to the benefit of Section 47B of the Act of 1938. The reliance placed by learned counsel for the appellants on *Mst. Undlus Begum* is misconceived, the same being distinguishable on facts. In that case, the death of the insured occurred on 24.02.2002, i.e., after the pronouncement in *Dr. M. Aslam Khaki* and after the date from which the provisions of the Act of 1938 (including Section 47B, as treated therein) were directed to cease to have effect i.e., 30.06.2001, and also after repeal/substitution of the Act of 1938 by the Ordinance, 2000. Moreover, the controversy in the present matters has been examined also in the light of the subsequent developments, including the review judgment and the post-remand decision in *Farooq Brothers*. Conversely, in the present cases, the cause of

[1] (2) If the Court decides that any law or provision of law is repugnant to the Injunctions of Islam, it shall set out in its decision :— (b) the extent to which such law or provision is so repugnant; and specify the day on which the decision shall take effect

action for interest on account of delayed settlement accrued during the subsistence of Section 47B and prior to both the promulgation of the Ordinance, 2000 and the cut-off date 30.06.2001. Accordingly, the *ratio* of *Mst. Undlus Begum* as regards applicability of Section 47B of the Act of 1938 does not govern the controversy in the present cases. The *review judgment* as well as post-remand judgment in the case of *Farooq Brothers* were probably not brought to the attention of the Court during the hearing of *Mst. Undlus Begum*, therefore, the same were not discussed therein.

16. For the foregoing reasons, all the appeals in hand are dismissed. There shall be no order as to costs. Decree sheets be drawn accordingly.

(RAHEEL KAMRAN)
JUDGE

Announced in the Open Court on ____________

JUDGE

*Azhar**